

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 1148

By: Humphrey

AS INTRODUCED

An Act relating to whistleblower protection; stating public policy; defining term; prescribing criminal punishment for certain actions; providing for incarceration; providing for imposition of fine; providing for civil cause of action; specifying recoverable damages; providing for award of attorney fees; providing for award of costs; providing for codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 25001 of Title 74, unless there is created a duplication in numbering, reads as follows:

It is the public policy of this state to protect those persons disclosing wrongdoing by state agencies, political subdivisions, public trusts, and those in the private sector who have supervisory or other controls over persons in their workplace who report wrongdoing without fear or threat of retaliation. Such persons reporting wrongdoing shall be known as "whistleblowers".

1 SECTION 2. NEW LAW A new section of law to be codified
2 in the Oklahoma Statutes as Section 25002 of Title 74, unless there
3 is created a duplication in numbering, reads as follows:

4 A. As used in this section, "retaliation" means any threat or
5 action to terminate, demote, refusal to promote, threaten or
6 intimidate a whistleblower who reports wrongdoing.

7 B. Any public official and/or employee, employer or employee
8 who supervises a whistleblower that engages in an action or activity
9 that violated public policy as defined in Section 1 of this act for
10 reporting wrongdoing shall be guilty of a misdemeanor punishable by
11 incarceration for up to one (1) year and a Five Thousand Dollar
12 (\$5,000.00) fine, and liable civilly for all economic, emotional and
13 mental anguish directly caused thereby together with punitive
14 damages, and such person shall be prohibited from holding any public
15 office or employment.

16 C. Any whistleblower who successfully prosecutes an action
17 under this act shall be entitled to a reasonable attorney fee
18 together with costs.

19 SECTION 3. This act shall become effective November 1, 2025.
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